

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**REQUEST FOR JUDICIAL NOTICE
(ISO LEAVE TO FILE TAC)**

(Evid. Code, §§ 452, 453)

I. COURT RECORDS — EVIDENCE CODE § 452(D)

A. FROM THE UNDERLYING ACTION (CGC-21-594102)

Exhibit	Document	Date	Relevance
A	Motion in Limine No. 17	Jan. 17, 2025	“Unknown provenance” representation
B	Hearing Transcript, Feb. 18, 2025 (excerpts)	Feb. 18, 2025	Jessup testimony; “news to me”
C	Reporter’s Transcript Vol. 7, p. 213, ll. 13–15	Apr. 16, 2025	“Provided by Dolan” admission

Exhibit	Document	Date	Relevance
D	SFPD Report 210079556	—	Underlying collision
E	Judgment	Apr. 25, 2025	Underlying judgment

B. FROM THIS ACTION (CGC-25-631802)

Exhibit	Document	Date	Relevance
F	Second Amended Complaint	(on file)	Operative pleading
G	Defendant's Motion to Strike	Apr. 22, 2026	Objections being cured

C. FROM RELATED ACTION (CGC-25-631801)

Exhibit	Document	Relevance
H	Complaint in CGC-25-631801	Related extrinsic-fraud action

II. CSAA DENIAL LETTER — EVIDENCE CODE § 452(H)

Exhibit	Document	Date	Relevance
I	CSAA Denial Letter (Claim No. 1004-09-1054)	Feb. 25, 2021	Precipitous denial; Sarah Rash signatory

1 **III. STATUTES AND REGULATIONS — EVIDENCE CODE §§ 452(A),**
2 **(B)**

Exhibit	Statute/Regulation	Relevance
J	Bus. & Prof. Code § 17200 et seq.	UCL
K	Ins. Code § 790.03	Unfair claims practices (contextual)
L	10 CCR § 2695.4	File and record documentation
M	10 CCR § 2695.7	Thorough investigation requirement
N	Civ. Code §§ 1709, 1710	Fraud and deceit
O	Civ. Code § 3294	Punitive damages
P	Civ. Code §§ 3287, 3288	Prejudgment interest

3
4 **IV. LEGAL BASIS**

5 **A. COURT RECORDS ARE PROPER SUBJECTS OF JUDICIAL NO-**
6 **TICE**

7 Evidence Code § 452(d) permits judicial notice of court records. The documents listed as Exhibits
8 A through H are records of the Superior Court of California, County of San Francisco.

9 **B. FACTS NOT REASONABLY SUBJECT TO DISPUTE**

10 Evidence Code § 452(h) permits judicial notice of facts capable of immediate and accurate deter-
11 mination by resort to sources of reasonably indisputable accuracy. The CSAA denial letter (Exhibit
12 I) is a document whose existence and contents are not reasonably subject to dispute.

13 **C. STATUTES AND REGULATIONS**

14 Evidence Code §§ 452(a) and (b) permit judicial notice of statutes and regulations. The statutes
15 and regulations listed as Exhibits J through P are proper subjects of mandatory judicial notice.

1 **D. JUDICIAL NOTICE IS MANDATORY UPON PROPER REQUEST**

2 Evidence Code § 453 provides that the trial court shall take judicial notice of any matter specified
3 in Section 452 if a party requests it and gives adverse parties sufficient notice.
4 _____

5 **V. CONCLUSION**

6 For the foregoing reasons, Plaintiff respectfully requests that this Court take judicial notice of the
7 documents identified above.
8 _____

9 **Dated:** _____

10 **FRANCISCUS DYLAN ROSARIO**

11 Plaintiff, In Pro Per

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Dated: April 22, 2026



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